

Ajeet Kumar v. State of U.P.

Allahabad High Court · Single Judge · 6 April 2012 · Writ-C No. 17301 of 2012 · **Writ disposed; petitioner directed to CGRF under cl. 7.10**

HEADNOTE

The High Court declined to direct the District Consumer Protection Forum, Sonebhadra to decide a pending tariff-billing complaint and relegated the consumer to the Consumer Grievances Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005, with a 15-day filing / 8-week disposal direction. Reconnection was left to a request before the officer, to be decided in accordance with law.

FACTUAL SUMMARY

Ajeet Kumar alleged that his rural electricity connection at Sonebhadra was billed on an inflated tariff. He filed Complaint Application No. 76 of 2011 before the District Consumer Protection Forum, Sonebhadra, and also represented to the Executive Engineer seeking bill correction and a stop on excess recovery. Alleging non-cooperation before the Forum, he sought a High Court direction for early disposal of that complaint. The Power Corporation said the grievance lay before the CGRF under Clause 7.10 of the 2005 Supply Code, the Sonebhadra forum being attended at Mirzapur.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF route for tariff and billing grievance

HOLDING

A grievance as to the rate of tariff and alleged excess billing is to be placed before the Consumer Grievances Redressal Forum constituted under Clause 7.10 of the Electricity Supply Code, 2005. The High Court will not mandamus the District Consumer Protection Forum to decide such a complaint; the consumer is to approach the functioning CGRF (here Mirzapur, looking after Sonebhadra) with a certified copy of the order, for time-bound disposal. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE TARIFF AND ALLEGED EXCESS BILLING

Whether the connection was rural and whether the bills were at the wrong rate was not examined. ¶ 1

NOT DECIDED — RECONNECTION

Left open to a request before the officer, to be decided in accordance with law. ¶ 1